ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	167th Commission Meeting
DATE:	12 March 2024
TIME:	11:50 AM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Review on the application of a 24% penalty in corruption cases – LD *LD appraised the Commission on the review of applying a 24% penalty in corruption cases, detailing its rationale for the review, developmental aspects surrounding its application, practical challenges and complexities in criminal proceedings. It highlighted inconsistencies in some of the relevant legislations, particularly while handling cases from institutions not covered by the Audit Act of Bhutan 2018 and Financial & Accounting Manual (FAM) 2016, leading to a lack of legal basis for the penalty.* *The key recommendations for the Focal Team included:* *i. The penalty stipulated be treated as an administrative sanction and abrogate once the criminal proceedings are initiated to ensure uniform application across all cases of the same subject matter, irrespective of their referral sources. Such penalty to be applied only in cases that do not qualify for criminal investigation/prosecution, or those referred for disciplinary action post-acquittal.* *ii. Request the MoF to segregate 'Embezzlement' and 'Misuse of funds' and remove these terms from the FAM to accommodate*	**Noted the review findings and Recommendations with following specific directives:** • **LD was directed to present it in the upcoming Tripartite Meeting amongst ACC, OAG, and RAA, which is to be tentatively scheduled in the 1st week of April 2024. For that matter, the following modifications were directed to be made while presenting in the meeting:** **a) Application of the stipulated Penalty across all cases of the same subject matter received from the RAA as well as of those governed by the FAM;** **b) For those cases, which are beyond the purview of the Audit Act and FAM, the Commission recommended to pray for application of penalty upon invoking section 209 of CCPC, read in line with section 55 (21) of the Audit Act of Bhutan 2018 and relevant provisions of the FAM, upon revising these provisions.** **c) As recommended, the Commission decided to consult the MoF to revise the current FAM and consider deletion of 'Embezzlement' & 'Misuse of funds' from the current FAM provisions viz. clauses 4.5.1.4 & 8.1.5 (h). Further, the MoF must consider segregating the types of cases that will be dealt administratively by the agencies from those that should be referred to the ACC for criminal investigation in the FAM.**

	both criminal and administrative measures, preventing potential defense that may be used by those implicated, exploiting the provisions of the FAM. *iii. Requests to the MoF for necessary modifications in the FAM should be made collaboratively with the ACC, OAG & RAA.* *Based on these practical challenges and proposed recommendations, in-depth deliberations were held.* *The details of the review findings are attached in the attached paper.*	
2	Present Gift Rule Questionnaires-LD	**Deferred**

Commissioner **Commissioner** **Chairperson**

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